

NO. 98-1177-3

DUNNAM & DUNNAM, L.L.P., et al
Plaintiffs,

V.

THE DUNHAM LAW FIRM,
ATTORNEYS AT LAW, P.C.,
PAUL J. DUNHAM, JEFFREY R.
CASEY, TONY FAULKNER AND
BOBBY HAWKINS

Defendants.

IN THE DISTRICT COURT OF CON

APR 24 9 13 AM '98
CLERK
HALL COUNTY, TEXAS
DEPUTY

MCLENNAN COUNTY, TEXAS

74th JUDICIAL DISTRICT

AGREED JUDGMENT

On the 22nd day of April, 1998, came on to be considered the application for temporary injunction of DUNNAM & DUNNAM, L.L.P., W. V. Dunnam, Jr., Vance Dunnam, Vance Dunnam, Jr., and James R. Dunnam, plaintiffs, against THE DUNHAM LAW FIRM, ATTORNEYS AT LAW, P.C., Paul J. Dunham, Jeffrey R. Casey, Tony Faulkner, and Bobby Hawkins, defendants, and the parties all appeared in person or by their attorneys and the Court began to hear evidence, and on the 23rd day of April, 1998, the parties announced to the Court that they had agreed to this Agreed Judgment providing for the permanent injunction set forth herein.

The Court, having considered the evidence and the agreement of the parties, finds that the individual plaintiffs have been and are practicing law in a partnership conducting specialized as well as general civil and criminal practice primarily in and around McLennan County, Texas, since at least the early 1920's, that their firm was founded by W. V. Dunnam, Sr., who in conjunction with his sons and grandchildren, W. V. Dunnam, Jr., Vance Dunnam,

Vance Dunnam, Jr., and James R. Dunnam, have practiced law under variations of the Dunnam law firm name continuously for at least the last 75 years, that plaintiffs' law firm name has been continuously used for at least 75 years in the practice of law, and that plaintiffs' clients and the general public have come to associate the Dunnam name exclusively with plaintiffs' legal services over the course of these years, and that plaintiffs have therefore acquired a secondary meaning and common law right in the use of this name in the geographic area set forth herein.

The Court further finds unless the permanent injunction provided for herein is entered, the continued use by defendants of the names prohibited by this Agreed Judgment will cause immediate and irreparable injury to and damage to plaintiffs' reputation in the eyes of other lawyers and clients.

The Court further finds that the parties have agreed to this Agreed Judgment and that said agreement of the parties should be and is hereby approved and that this judgment should be and is entered in accordance with that agreement.

It is, therefore, ORDERED, ADJUDGED and DECREED that defendants, The Dunham Law Firm, Attorneys at Law, P.C., Paul J. Dunham, Jeffrey R. Casey, Tony Faulkner, and Bobby Hawkins, their officers, agents, servants, employees and attorneys, and persons or entities acting in concert or participation with defendants, including but not limited to Dunham, Casey & Faulkner, P.C., are hereby permanently enjoined from using, directly or indirectly, for any purpose and in any manner, in Bell, McLennan, Coryell, Hill, Bosque, Johnson, Brazos, Hamilton, Somervell, Limestone, Freestone, Robertson, Falls, Madison, Navarro, and Leon Counties, Texas (hereinafter referred to as the specified area), the names "Dunham, Attorney at Law;" "Dunhams, Attorney at Law;" "Dunham Law Firm;"

"Dunham Firm;" "Dunhams;" "Dunham and Associates, with any variation of the use of a word or symbol for "and;" "Dunham and Dunham, with any variation of the use of a word or symbol for "and;" and any of the above mentioned names with the word "The" or "the" preceding those names; and any of the above referenced names with the words or abbreviations Inc., P.C., A Professional Corporation, L.L.P. or Limited Liability Partnership following or associated with the above referenced names, and any of the above referenced names with the spelling Dunnam rather than Dunham; and from using the name Dunham or Dunnam without a different given name or a different surname associated with said name (hereinafter referred to as the specified names).

It is further ORDERED, ADJUDGED and DECREED that defendants shall immediately cancel, or cause to be cancelled, by taking any and all necessary steps, all advertising or telephone listings purchased, made, placed or arranged by them using the specified names, in the specified area, and defendants are further ORDERED not to hereafter place, purchase or arrange for in any way any advertising or telephone listings using the specified names in the specified area.

It is further ORDERED, ADJUDGED and DECREED that defendants are enjoined from hereafter placing, making, purchasing or otherwise permitting any advertising or solicitation distributed or circulated in the specified area emphasizing the name "Dunham" or "Dunnam" as compared to any other given or proper name which may be contained in the name of the law firm, group or individual placing, making, purchasing or otherwise permitting said advertising.

It is further agreed and ORDERED that if defendants are not able, after taking reasonable steps to do so, to cancel one telephone yellow pages advertising previously

purchased by them to appear in the Sprint telephone directory for Killeen, Texas scheduled to be released for 1998 that their failure to do so will not be considered a violation of the permanent injunction provided for herein, but any republication after the presently arranged for edition, or any failure by defendants to cancel other previously purchased but yet unpublished advertising, using the specified names in the specified area will be considered a violation of this Agreed Judgment and the permanent injunction provided for herein.

Costs of court are taxed against the party incurring same.

The Court further finds that the parties have agreed that the entry of this Agreed Judgment will not prejudice the rights of plaintiffs to seek damages, injunctive relief, or other relief provided for by law or in equity should defendants, or any of them, hereafter take actions which infringe upon plaintiffs' name in the specified area.

It is further ORDERED, ADJUDGED and DECREED that all relief prayed for by any party hereto not hereby expressly granted is hereby in all things DENIED.

SIGNED this 23 day of April, 1998.



DISTRICT JUDGE, PRESIDING

AGREED TO AS TO FORM AND CONTENT:

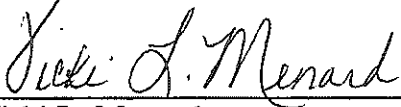
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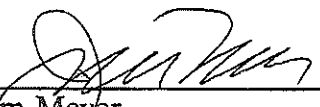
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